

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

KWABEE WILLIAMS,

Plaintiff,

-against-

**THE CITY OF NEW YORK; TARGET
CORP.; P.O. GURWINDER SINGH;
JOHN DOES 1-10,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Kings County as
the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
October 13, 2022

Rickner PLLC

By: /s/

Rob Rickner
Stephanie Panousieris

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506
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Attorneys for Plaintiff

TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, NY 10007

TARGET CORPORATION
1000 Nicollet Mall
Minneapolis, MN 55403

PO GURWINDER SINGH
Shield No. 17991, Tax ID 968135
75th Precinct
1000 Sutter Ave.
Brooklyn, NY 11208

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VERIFIED COMPLAINT

Plaintiff Kwabee Williams, by his attorneys at Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York, members of the New York City Police Department ("NYPD"), the Target Corporation, and the Target employees who violated Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, committed torts actionable under the common laws and statutes of the State and New York, and violated Plaintiff's Rights under the New York City Human Rights Law.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States, Plaintiff's rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws and statutes of the State and City of New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller, who a designated the claim as number 2022PI000797.

5. Plaintiff appeared for a hearing under General Municipal Law § 50-h on September 8, 2022.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because the Plaintiff's claims arose in the County of Kings.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

10. Defendant City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Police Officer Gurwinder Singh (Shield No. 17991, Tax ID 968135) (hereinafter "Singh") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Officer Singh is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Defendant John Does 1–5 were, at all relevant times, NYPD officers employed by the City of New York. Upon information and belief, each of the officers are assigned to the 75th Precinct in Brooklyn, New York. At all relevant times described herein, Does 1–5 were acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment. Each is sued in an individual capacity.

15. While the true names and shield numbers of Defendant Does 1–5 are not currently known to the Plaintiff, each is an employee or agent of the NYPD. Accordingly, each is entitled to representation in this action by the New York City Law Department upon request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officers as defendants in an amended pleading once their true identities are known; and (b) that the Law Department should immediately begin preparing their defenses in this action.

16. Collectively, Officer Singh and Does 1–5 are referred to as the “NYPD Defendants.”

17. At all times relevant herein, the NYPD Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD. At all relevant times, the NYPD Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and

lending their physical presence and support and the authority of their offices to one another.

18. Defendant Target Corporation (“Target Corp.”) is a national corporation headquartered in Minneapolis, MN, with retail locations across the country, doing business in New York State, the County of Kings. Defendant Target Corp. owns and operates the Target store located at 519 Gateway Drive, Brooklyn, New York (hereinafter “Gateway Target”), where the incident alleged herein took place.

19. Defendant John Doe 5–10 are agents or employees of the Target Corporation, who, at all relevant times herein, were working at the Gateway Target in Brooklyn, New York.

20. Collectively, Defendants Target Corp. and Does 5–10 are referred to as the “Target Defendants.”

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

21. On October 13, 2021, Plaintiff was lawfully shopping inside of the Target store located at 519 Gateway Drive in Brooklyn, New York (hereinafter “Gateway Target”) with his wife.

22. Plaintiff and his wife, who are black, were approached by the NYPD Defendants and told to leave the store because “Target didn’t want them there.”

23. This instruction to leave was based on false and discriminatory accusations of the Target Defendants, who profiled Plaintiff on the basis of his race.

24. The NYPD Defendants did not independently investigate the veracity of the conclusory claims made by the Target Defendants.

25. Instead, as Plaintiff and his wife were attempting to leave the store (as instructed), the NYPD Defendants detained and arrested Plaintiff without probable cause.

26. The NYPD Defendants used excessive and unnecessary force while cuffing Plaintiff, who immediately told them that he was recovering from shoulder surgery. As a result of this force,

the NYPD Defendants reinjured Plaintiff's shoulder, causing significant pain and suffering.

27. Plaintiff was taken to the 75th Precinct for several hours before he was released with a Desk Appearance Ticket signed by Defendant Officer Singh, charging Plaintiff with a violation of PL 155.25 (Petit Larceny) and PL 165.40 (Criminal Possession of Stolen Property).

28. The NYPD and Target Defendants initiated this prosecution without probable cause, and using false evidence and statements, including unfounded accusations that Plaintiff had stolen items from the store.

29. Because there was no evidence corroborating these false accusations against Plaintiff, the Kings County District Attorney's Office declined to prosecute either charge.

THE INJURIES TO PLAINTIFF

30. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions, including experiencing public humiliation and degradation when he was racially profiled and arrested in a discriminatory manner.

31. The NYPD and Target Defendants' actions were wanton, reckless, malicious, and in blatant disregard of Plaintiff's civil rights, and as such they are liable for punitive damages, as is the City of New York and the Target Corp. under the doctrine of *respondeat superior*.

32. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CLAIM FOR RELIEF: EXCESSIVE FORCE UNDER 42 U.S.C. § 1983 AGAINST THE NYPD DEFENDANTS

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

34. The NYPD Defendants used physical force against Plaintiff.

35. Plaintiff's seizure and detention was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and unconstitutional.

36. Even assuming arguendo that Plaintiff's arrest was lawful, the NYPD Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to plaintiff.

37. That by virtue of the aforementioned acts, Plaintiff was caused to suffer physical, economic, and emotional injuries, and was deprived of his civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable or unlawful searches and seizures.

38. As a result of the above unconstitutional conduct the NYPD Defendants are liable for damages to Plaintiff pursuant to 42 U.S.C. § 1983, including punitive damages.

**SECOND CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE NYPD DEFENDANTS**

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. Plaintiff's seizure and detention was made in the absence of probable cause, in violation of his civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable or unlawful searches and seizures.

41. As a result of the above unconstitutional conduct the NYPD Defendants are liable for damages to Plaintiff pursuant to 42 U.S.C. § 1983, including punitive damages.

**THIRD CLAIM FOR RELIEF:
ASSAULT AGAINST ALL DEFENDANTS**

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

43. Defendants intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

44. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty, and Defendants are liable for punitive damages.

45. The City of New York is liable for the conduct of the NYPD Defendants and any damages they caused under the doctrine of *respondeat superior*.

46. The Target Corp. is liable for the conduct of the Target Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FOURTH CLAIM FOR RELIEF:
BATTERY AGAINST ALL DEFENDANTS**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

49. As a result of the above tortious conduct, Plaintiff was caused to suffer physical,

economic, and emotional injuries, as well as a deprivation of liberty, and Defendants are liable for punitive damages.

50. The City of New York is liable for the conduct of the NYPD Defendants and any damages they caused under the doctrine of *respondeat superior*.

51. The Target Corp. is liable for the conduct of the Target Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FIFTH CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT AGAINST
ALL DEFENDANTS**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. Plaintiff was profiled, arrested, handcuffed, and detained in the absence of probable cause by Defendants. This confinement and restraint of liberty was not otherwise privileged.

54. Plaintiff was conscious of the confinement and did not consent to such confinement.

55. Plaintiff's arrest is *void ab initio* because Plaintiff was taken to a precinct or otherwise taken into custody, rather than being given a summons or other process without such detainment, in violation of New York Criminal Procedure Law § 150.20.

56. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty, and Defendants are liable for punitive damages.

57. The City of New York is liable for the conduct of the NYPD Defendants and any damages they caused under the doctrine of *respondeat superior*.

58. The Target Corp. is liable for the conduct of the Target Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE NYPD DEFENDANTS AND THE CITY OF NEW YORK**

59. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

60. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, § 12, and including the following rights:

- a. freedom from unreasonable search and seizure of her person and property;
- b. freedom from arrest without probable cause;
- c. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- d. freedom from the lodging of false charges against him by police officers and prosecutors; and
- e. freedom from deprivation of liberty without due process of law.

61. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution.

62. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty, and NYPD Defendants are liable for punitive damages.

63. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK AND TARGET CORP.**

64. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

65. The City of New York and Target Corp. negligently hired, screened, retained, supervised, and trained the NYPD and Target Defendants, respectively. The acts and conduct of these Defendants were the direct and proximate cause of injury and damage to Plaintiff.

66. As a result of this tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty, and the NYPD and Target Defendants are liable for punitive damages.

67. The City of New York is liable for the conduct of the NYPD Defendants and any damages they caused under the doctrine of *respondeat superior*.

68. The Target Corp. is liable for the conduct of the Target Defendants and any damages they caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
NEW YORK STATE EXECUTIVE LAW § 296
AGAINST THE TARGET CORP. AND TARGET DEFENDANTS**

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

70. Plaintiff's state statutory right to be free from discrimination on the basis of race in a place of public accommodation was violated by the actions of the Target Defendants.

71. As a result of the above unlawful conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty, and the Target Defendants are liable for punitive damages.

72. The Target Corp. is liable for the conduct of the Target Defendants and any damages they caused under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801-807 AGAINST THE NYPD DEFENDANTS
AND THE CITY OF NEW YORK**

73. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

74. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the NYPD Defendants.

75. Qualified immunity is no defense to this claim.

76. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty, and the NYPD Defendants are liable for punitive damages.

77. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

**TENTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE § 8-502 AGAINST THE TARGET CORP.
AND TARGET DEFENDANTS**

78. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

79. Plaintiff's right under the New York City Administrative Code to be free from discrimination on the basis of race in a place of public accommodation was violated by the actions of the Target Defendants.

80. As a result of the above unlawful conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty, and the Target Defendants are liable for punitive damages.

81. The Target Corp. is liable for the conduct of the Target Defendants and any damages

they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief, jointly and severally against all

Defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
October 13, 2022

Rickner PLLC

By: /s/

Rob Rickner
Stephanie Panousieris

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

I, Stephanie Panousieris, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff .

2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where counsel maintains offices.

Dated: New York, New York
October 13, 2022

Rickner PLLC

By:



Stephanie Panousieris

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New York, New York 10005
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